

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-011
Amendments to PR 21-008
(Summons, Subpoena, Other Process; Service)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature enacted Permanent Resolution PR21-008 on December 19, 2003 by a vote of 12 ayes, 0 nays and 0 abstentions, and

WHEREAS, PR21-008 also improperly identified certain references made to other sections of the Chickasaw Nation Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendment to Permanent Resolution PR21-008 (all other language of PR 21-008 to remain the same) (additions are shown in red, deletions are stricken through):

"SECTION 5-204.7 **SERVICE BY PERSONAL DELIVERY.**

B. When Process has been served, the return thereof shall be filed in the office of the Court Clerk. ~~in accordance with Paragraph C.4 below.~~

SECTION 5-204.19 **SUBPOENAS.**

I. **Protection of Persons Subject to Subpoenas.**

3. On timely motion, the Court by which a Subpoena was issued shall quash or modify the Subpoena if it:

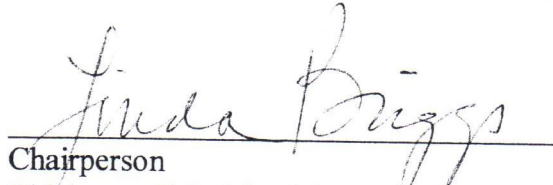
_____ b. _____ ~~requires a person to travel to a place beyond the limits allowed under Paragraph A.3 above;~~

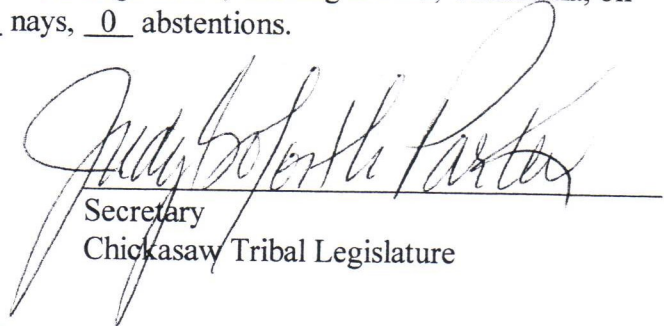
 bc. requires disclosure of privileged or other protected matter and no exception or waiver applies;

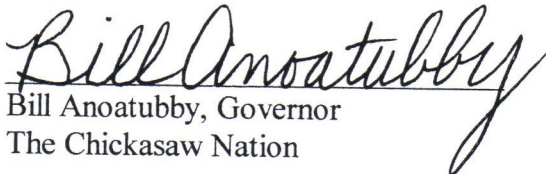
 cd. subjects a person to undue burden; or

de. requires production of books, papers, documents or tangible things that fall outside the scope of discovery permitted by the Rules of Discovery.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on January 16, 2003, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JAN 16 2004

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Explanation: This resolution deletes incorrect references made in 2 sections passed in PR21-008.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

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Court Development Ad Hoc Committee